

Tamil Nadu Regularisation of Unapproved Layouts and Plots Rules, 2017

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State of Tamilnadu- Act

Tamil Nadu Regularisation of Unapproved Layouts and Plots Rules, 2017

TAMILNADU

India

Tamil Nadu Regularisation of Unapproved Layouts and Plots Rules, 2017

Rule TAMIL-NADU-REGULARISATION-OF-UNAPPROVED-LAYOUTS-AND-PLOTS-RULES-2017 of 2017

Published on 4 May 2017

Commenced on 4 May 2017

[This is the version of this document from 4 May 2017.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Regularisation of Unapproved Layouts and Plots Rules, 2017

Published Vide Notification No. SRO A-21(a)/2017, G.O. Ms. No. 78, Housing and Urban Development [UD4(3)], dated 4th May 2017

Last Updated 16th January, 2020

General Statutory Rules, Notifications, Orders, Regulations, etc., issued by Secretariat Departments.

Housing and Urban Development Department

Notification No. SRO A-21(a)/2017, G.O. Ms. No. 78, Housing and Urban Development [UD4(3)], dated 4th May 2017. - Whereas it is noticed that a large number of unapproved layouts and sub-divisions have been developed all over the State in both urban and rural areas without adequate infrastructure and public amenities and most of the plots in such

layouts and sub-divisions have been purchased by poor and innocent people and there is no way to convert these layouts and sub-divisions or plots back to their original use;

And Whereas it is expedient to regularise the plots in such unapproved layouts or sub-divisions so as to protect the interests of those innocent purchasers and to provide basic infrastructure facilities;

And Whereas it is also observed that regularisation of sold out plots alone without considering the layout or sub-division as a whole will result in discontinuous pockets of development, causing enormous difficulty to the Local Bodies to provide services to the regularised plots in isolation and therefore, it is considered necessary to regularise these unapproved layouts and sub-division in their entirety by insisting to widen the roads, improve circulation, reserve areas for open space and public purpose to the extent feasible in each layout;

Now Therefore, in exercise of the powers conferred by Section 113 of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act

35 of 1972

), the Governor of Tami Nadu hereby exempts all unapproved layouts, where any or all plots are sold and registered on or before the 20th October 2016 and all unapproved plots which are sold and registered on or before the 20th October 2016 from the operation of all the provisions of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972

) and makes the following rules for regularization of such unauthorized layouts and plots under Section 122 of the said Act.

1.

Short title, application and commencement.

- These rules may be called the Tamil Nadu Regularisation of Unapproved Layouts and Plots Rules, 2017.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(1)

"Act" means the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972

);

(2)

"Competent Authority" means,-

(i)

for regularisation of unapproved individual plot in a sub-division or layout-

(a)

in case of a City Municipal Corporation, the Commissioner;

(b)

in case of a Municipality, the Commissioner;

(c)

in case of a Town Panchayat, the Executive Officer; and

(d)

in case of a Village Panchayat, the Block Development Officer (Village Panchayats);

(ii)

for regularization of layout,-

(a)

in the Chennai Metropolitan Planning Area, the Member-Secretary of Chennai Metropolitan Development Authority;

(b)

in any other areas, the Member-Secretary of the Local Planning Authority or the Regional Planning Authority or the New Town Development Authority functioning under the control of Town and Country Planning Department or the Regional Deputy Director or Assistant Director of the Town and Country Planning Department, as the case may be, in whose jurisdiction the layout exists;

(3)

"Development charge" means the amount to be collected towards the cost of providing amenities and infrastructure

facilities in urban and rural areas within the jurisdiction of the Local Authorities at the rates specified in rule 10;

(4)

"Development Control Regulations" means the development control regulations for the areas other than the Chennai Metropolitan Planning Area;

(5)

"Development Plans" means Master Plans, Regional Development Plans, New Town Development Plans, Detailed Development Plans and Town Planning Schemes in force in the respective planning area;

(6)

"Development Regulations" means the development regulations for the Chennai Metropolitan Planning Area forming part of the Second Master Plan for the Chennai Metropolitan Planning Area;

(7)

"Guideline value" means the guideline value of the land fixed by the Registration Department prevailing as on 1st August, 2007 for the plots registered upto 31st March, 2012 and for the plots registered on or after 1st April, 2012, the prevailing guideline value as on the date of notification of these rules. For the unsold plots in the layout, the value fixed by the Registration Department on the date of issue of in-principle approval of layout framework;

(8)

"Layout" means,-

(i)

division of land into plots exceeding 8 (eight) in numbers in Chennai Metropolitan Planning Area;

(ii)

division of land into plots by introducing a new road or street in areas other than Chennai Metropolitan Planning Area;

(9)

"Layout framework" means Layout plan approved by the Competent Authority specified in rule 2(2)(ii) with or without changes, showing the changes made to the as on ground layout plan submitted by the layout Promoter / Society/ Association or prepared suomotu as per rule 5(4) for the purpose of improving the layout.

(10)

"Layout Promoter" means a person whether owner or authorized person of any land including a registered co-operative society and an Association, who has developed land into a layout for the purpose of selling the plots in the said layout;

(11)

"Local Authority" means all City Municipal Corporations, Municipalities, Town Panchayats, Panchayat Unions and Village Panchayats;

(12)

"Plot holder" means a person in whose name the plot is registered with a registered sale deed or title deed executed on or before the 20th October, 2016;

(13)

"Plot or Unapproved plot" means a plot in an unapproved layout or sub-division;

(14)

"Regularisation charge" means a charge to be paid for regularising the unapproved plot or the unapproved sub-division as provided in rule 9;

(15)

"Regularisation of unapproved layout" means the regularization of unapproved layout framework. Such regularisation of unapproved layout framework will not automatically regularise the individual plot in the layout. The individual plot owner / promoter (in the case of unsold plots) shall, after regularization of unapproved layout framework, apply for regularization of his plot/plots separately.

(16)

"Sub-division" means,-

(i)

division of land into plots not exceeding eight in numbers in the Chennai Metropolitan Planning Area;

(ii)

division of land abutting an existing road or street into plots without introducing any new road or street in an area other than Chennai Metropolitan Planning Area;

(17)

"Unapproved layout or sub-division" means a layout or sub-division of land made without the prior approval or concurrence of the Director of Town and Country Planning or the Chennai Metropolitan Development Authority, as the case may be;

(18)

Words and expression used, but not defined in these rules, shall have the same meaning assigned to them in the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972

).

3.

Cut-off date for considering regularisation of unapproved plots and layouts.

- Only those unapproved layouts where a part or full number of plots have been sold through a registered sale deed as on 20th October, 2016 shall be considered for regularization under these rules. Similarly, all plots including unsold ones are eligible for regularization in layouts where at least a part of the total number of plots have been sold through a registered sale deed as on 20th October, 2016. Individual plot in a sub-division registered by a sale or title deed as on 20th October, 2016 shall also be eligible for regularization. As proof and evidence, the plot holder or the layout promoter is required to furnish copies of the sale deed or title deed for the plots sold. Agreement for sale or General Power of Attorney shall not be considered as evidence for proof of sale of plot.

4.

Restrictions for regularization of unapproved plots and layouts.

(1)

No plot or layout in part or whole, which is located in public water body like Channel, Canal, Tank, Lake, River, etc. shall be eligible for regularization.

(2)

No plot or layout in part or whole in Government Poramboke land shall be eligible for regularisation.

(3)

No plot or layout in Open Space Reservation (OSR) land, Park or Play-field reserved in any approved layout or sub-division shall be considered for regularization.

(4)

Vacant plots blocking access to surrounding lands which do not have any other means of access are not eligible for regularisation.

(5)

No plot or layout in part or whole, lying in the lands affected by the alignments of proposed road or rail corridors and street alignments specified in the development plans shall be regularised.

(6)

No plot with any encroachment on to a public road or street or on any other land over which the applicant does not possess ownership right and lands affected by the repealed Tamil Nadu Urban Land (Ceiling and Regulation) Act, 1978 (Tamil Nadu Act 24 of 1978) shall be considered for regularisation.

(7)

No plot or layout in part or whole, lying in the lands below the alignment of high tension and extra high voltage electric line including tower lines shall be regularised.

5.

Compulsory application for regularization.

(1)

It shall be compulsory for all the individual plot owners and layout promoters eligible under rule 3 to file an application on-line in Form-I for regularisation to the Competent Authority concerned within six months from the date of commencement of these rules along with the fees and charges as per the self assessment made and annexed with the application. The Competent Authority shall process the application and pass orders of regularization on-line.

Provided that the application for individual plot regularization in a layout shall be considered for regularization only after in principle approval of the layout framework is issued by the Competent Authority. Accordingly, all the individual plot owners in an unapproved layout shall apply for regularization of their plots along with a sketch of the layout.

(2)

Application for regularization of unapproved layout can also be made by the Layout Promoter / Registered Co-operative society / Association of the plot holders in an unapproved layout where more than two-thirds of the total number of plots in the layout have been sold before the cut-off date.

(3)

Within 15 days from the date of notification of these rules the Competent Authority specified in rule 2(2)(ii) shall call upon the Competent Authority specified in rule 2(2)(i) to furnish a certified list of unapproved layouts formed within its jurisdiction along with the details of name of the revenue village, survey numbers or ward numbers, town survey numbers, name of the local body, as the case may be covered by the layout and its extent.

(4)

Upon receipt of the list of unapproved layouts, the Competent Authority specified in rule 2(2)(ii) shall suo-motu prepare and approve and give in-principle approval for the layout framework as existing on ground by employing the services of licensed surveyors for those layouts which are covered in the list furnished by the Competent Authority specified in rule 2(2)(i) but not applied for regularization by any of the layout Promoter/Registered Co-operative Society/Association of plot owners.

(5)

The Layout Promoter/Registered Co-operative society/Association applying for regularization of the layout shall be jointly and severally responsible for undertaking the rectification of deficiencies in such unapproved layout and to comply with the conditions as directed by the Competent Authority concerned, and pay the required fees and charges as prescribed in these rules by the Competent Authority.

(6)

Application for regularisation of unapproved individual plot in a layout or sub-division shall be made to the Competent Authority concerned as specified in rule 2(2)(i).

(7)

Application for regularisation of unapproved layout shall be made to the Competent Authority concerned as specified in rule 2(2)(ii).

(8)

An application made by any person for regularisation of plot or layout who does not have any right over the land shall be summarily rejected.

(9)

The application shall be accompanied by the following documents, namely:-

(a)

For regularisation of unapproved individual plot in a sub-division or layout:

(i)

Three copies of plan showing the site plan with dimensions of the plot or sub division as per the patta or Field Measurement Book (FMB) sketch, and the width of the access road duly signed by both the applicant who has the right over the land and the Licensed Surveyor or other professionals prescribed in the relevant Act or Building Rules;

(ii)

A copy of layout plan showing the plot proposed for regularization, dimensions of the plots, road network, width of the roads, dimensions of public open spaces and public purpose plots along with survey field numbers of the village covered by the layout;

(iii)

A copy of topo sketch showing the location of layout and connectivity of the layout to the public road and physical features surrounding the layout;

(iv)

A self attested copy of sale deed or title deed for the plot.

(v)

A copy of patta, Permanent Land Record (PLR) or Town Survey Land Record (TSLR) extract in favour of the applicant shall be furnished. If the patta, Permanent Land Record (PLR) or Town Survey Land Record (TSLR) in favour of the applicant has not been obtained, then, the same in favour of the previous owner of the land shall be furnished;

(vi)

Encumbrance certificate issued by the Registration Department covering the plot transaction issued not more than a week before the date of application;

(vii)

In case of plot falling in agriculture land, a certificate or status report from the Tahsildar of the concerned Taluk that the layout is not obstructing the waterways on the common field irrigation channels on the ground and flood level or inundation status.

(b)

For regularisation of unapproved layout:

(i)

Five copies of layout plan showing the dimensions of the plots, road network, width of the roads, dimensions of public open spaces, public purpose plots and the survey field numbers of the village covered by the layout and marking the plots sold in the layout before the commencement of these rules;

(ii)

A copy of the topo sketch plan showing the public access to the layout, width of the access road and the surrounding physical features within a radius of 500 metres from the layout;

(iii)

Encumbrance Certificate (EC) issued by the Registration Department covering all the survey field numbers of the layout for the period from the date of commencement of sale of plot to the date not more than a week before the date of application;

(iv)

A self attested tabular statement showing the details of the plots sold including plot number, dimensions and its extent, date of sale, document number, name of the purchaser tallying with the encumbrance certificate and the details of unsold plots in case where the application is made by the layout promoter;

(v)

Self attested copy of ownership document in favour of the owner of the land in which the layout has been formed in case where the application is made by the layout promoter;

(vi)

Latest Patta, Permanent Land Records (PLR) or Town Survey Land Records (TSLR) and Field Measurement Book (FMB) sketches for the survey fields covered in the entire layout;

(c)

A self declaration in Form-II to the effect that the layout is not attracted under the provisions of the Tamil Nadu Urban Land (Ceiling and Regulation) Act, 1978 (Tamil Nadu Act 24 of 1978) and the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

);

(d)

In case of applications submitted by layout Promoter / Society / Association, an undertaking in a non-judicial stamp paper of value not less than twenty rupees in Form-III agreeing to undertake the rectification works as directed by the Competent Authority and remit the development charges, regularisation charges and Open space reservation charges as applicable as assessed by the Competent Authority; In suo-motu cases specified in rule 5(4), the plots falling in spaces specified for rectification in the layout by the competent authority will not be regularized to the extent of required rectification.

(e)

Any other document as may be required by the Competent Authority;

6.

An application under these rules shall be in conformity with the following, namely.

(1)

The Civil Aviation Regulations of the Ministry of Tourism and Civil Aviation under the Aircraft Act, 1934 (Central Act XXII of 1934);

(2)

The Ministry of Defence Regulations for developments in the vicinity of the Air Force Stations within 100 metres around

the areas notified under the Works of Defence Act, 1903 (Central Act 7 of 1903);

(3)

The Coastal Zone Regulations of the Ministry of Environment and Forest under the Environment (Protection) Act, 1986 (Central Act 29 of 1986

), notified in the Gazette of Government of India Extraordinary, Part-II, Section 3, sub-section (ii), dated 6th January, 2011;

(4)

The Tamil Nadu District Municipalities (Hill Stations) Building Rules, 1993;

(5)

Annexure-XI to the Development Regulations of Chennai Metropolitan Planning Area in respect of Aquifer Recharge Area;

(6)

Annexure-XII to the Development Regulations of Chennai Metropolitan Planning Area in respect of Red Hills Catchment Area;

(7)

Areas notified under the Ancient Monuments and Archaeological Sites and Remains Act, 1959 (Central Act 24 of 1958), and the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966

).

7.

Guidelines for regularization.

- The unapproved individual plot and the unapproved layout seeking regularization should conform to the following, namely:-

(a)

The individual plot in a layout or sub-division seeking regularisation should have been sold or transferred in favour of the applicant by a registered sale deed executed before the date of coming into force of these rules.

(b)

The unapproved layout seeking regularization shall be a contiguous piece of land.

(c)

Any plot for regularisation shall abut a public road or gain access from a public road through a passage over which the applicant has the right to access.

(d)

The layout applied for regularisation shall gain access from a public road of minimum width of 4.8 metre in case of Corporations and Municipalities and 3.6 metre in case of Town Panchayats and Village Panchayats.

(e)

In case of individual plot :

(i)

All plots in a layout for which in-principle approval of layout frame work is granted by the Competent Authority specified in rule 2(2)(ii) under these rules shall be eligible for regularization.

(ii)

The individual plot in a sub division, shall be regularized irrespective of the building violations in the residuary plot.

(iii)

The individual plot in a layout shall be regularized only to the extent it tallies with the plot dimensions and abutting road width in the in-principle approved layout framework.

(iv)

The applicant shall to the extent any part of a plot in an in principle approved layout framework is required for road widening or providing access to the surrounding areas shall be gifted to the local body through a registered gift deed as required by the Competent Authority.

(f)

In case of layouts where less than one-third of the total number of plots in the layout have been sold before the cut off date:

(i)

The layout shall conform to the Development Regulations or Development Control Regulations, as the case may be, and the land use prescribed in the Master Plan except the width of the access road and conversion to other purpose from Agriculture usage in non-planned area.

(ii)

The procedures normally followed in the regular applications for approval of layout shall apply.

(g)

In case of layouts where one-third and above and upto two-third of the total number of plots in the layout have been sold:

(i)

The layout shall conform to the Development Regulations or Development Control Regulations, as the case may be, to the extent feasible and shall be eligible for exemptions in respect of road width, land usage, etc., to the extent conformity is not feasible.

(ii)

The layout pattern in respect of the unsold portions may be reorganised if required to improve the circulation.

(iii)

The reservation of land for Open space reservation and public amenities shall be provided by amalgamating or altering the unsold plots. Only in cases where it is not feasible to reserve the land for Open space reservation, equivalent guideline value shall be collected for the shortage area.

(iv)

In layouts where a portion or whole of the layout is formed in agricultural lands in areas other than planning areas, the Competent Authority shall examine whether any common irrigation field channel has been obstructed or encroached or removed due to the formation of layout and also the level of inundation to decide on the in principle approval of the layout framework.

(v)

In case of layouts still possessing some unsold plots under layout regularization scheme, the promoter shall hand over minimum space in the layout to provide common amenities e.g., Over head water tank, Electricity transformer etc., as required by the Local Planning Authority.

(h)

In case of layouts where more than two-third of the total number of plots have been sold before the cut-off date:

(i)

The layout shall be regularised 'as is where is' condition except for the restrictions in rule 4.

(ii)

The reservation of land for Open space reservation shall be provided if feasible by amalgamating or altering the unsold plots. In such cases either the promoter or all the plot owner shall give No Objection Certificate for such modification or reservation. Only in cases where it is not feasible to reserve the land, equivalent guideline value in lieu of Open space reservation shall be collected for the shortage area.

(iii)

In layouts where a portion or whole of the layout is formed in agricultural lands in areas other than planning areas, the Competent Authority shall examine whether any common irrigation field channel has been obstructed or encroached or removed due to the formation of layout and also the level of inundation and to decide on the in principle approval of the layout framework.

(iv)

In case of layouts still possessing some unsold plots under layout regularization scheme, the promoter shall hand over minimum space in the layout to provide common amenities e.g., Over head water tank, Electricity transformer etc., as required by the Local Planning Authority.

8.

Effect of regularization.

- Plots regularised under these rules shall be deemed to be regularised for residential usage irrespective of the land use

zone in the development plans concerned.

9.

Regularisation Charge.

(1)

Regularisation charge shall be assessed and levied separately for the plot or layout for regularisation under these rules at the rates given below:-

The regularisation charge per square meter of the plot area shall be-

(i)

Rs.100/- in City Municipal Corporation area;

(ii)

Rs.60/- in Municipal area; and

(iii)

Rs.30/- in areas covered under Town Panchayats and Village Panchayats areas.

The above regularisation charges shall be remitted into Government account.

10.

Levy of Development Charge.

- Development charge shall be collected for the plot or layout to be regularized at the rates given below: -

The Development Charge per square metre of the plot area shall be,-

(a)

Rs.600/- in City Municipal Corporation Area;

(b)

Rs.350/- in Special and Selection Grade Municipal Area;

(c)

Rs.250/- in Grade-I and Grade-II Municipal Area; and

(d)

Rs.150/- in Town Panchayat.

(e)

Rs.100/- in Village Panchayat Area.

The development charges so collected shall be remitted to the account of the respective local bodies.

11.

Charges for Open space reservation (OSR) Area.

(1)

For regularization of plot in a sub-division, the Open space reservation area requirement as per the Development Regulations or Development Control Regulations, as the case may be, shall be calculated and charged proportionate to the plot area applied for regularization.

(2)

For regularisation of layout, open space reservation area charge shall be collected for 10% of the layout area as per the guideline value specified in clause (7) of rule 2, if 10% of open space reservation area is not available. However, if part of the required 10% open space reservation area is available in the layout then such available area shall be deducted in the calculation of open space reservation area requirement and charges levied accordingly.

(3)

Open space reservation area charges shall be remitted in the accounts of the competent authority specified in Rule 2(2)(ii) as per the existing norms followed by the said competent authority.

12.

Scrutiny fees.

- Scrutiny fee at the rate of Rs.500/- per plot shall be collected by the competent authority specified in rule 2(2)(ii).

13.

Removal of doubt.

- The Regularization Charges, Open space reservation area charges and Development Charges specified in these rules are inclusive of the normally leviable charges by the Chennai Metropolitan Development Authority / Directorate of Town and Country Planning and Local Authority under the relevant laws and therefore they shall not collect any other charges

other than the charges specified in these rules for issue of regularization order for the plot.

14.

Processing of the application.

(1)

The Competent Authority specified in rule 2(2)(i) on receipt of application for regularization of a plot in a sub division, shall carry out inspection, confirm the status of access road, examine the application as per these rules, call for any additional details or particulars if necessary and decide on the regularization of the plot. The Competent Authority shall certify that the plot forms part of a sub division and not a layout before regularization of the plot. If the plot is found regularisable, a demand notice for payment of Regularisation Charges, Development Charges and Open space reservation Charges shall be issued. On receipt of the charges, the Competent Authority shall issue regularization order along with a copy of plan showing the plot regularized.

(2)

The Competent Authority specified in rule 2(2)(i) shall process the application for regularization of the individual plot in a layout only after in principle approval of layout framework is granted by the Competent Authority specified in rule 2(2) (ii) for the layout.

(3)

The Competent Authority specified in rule 2(2)(ii) shall on receipt of application for regularization of layout, shall carry out inspection, examine the application as per these rules, call for any additional details or particulars which are relevant to consider, if necessary and decide on the in-principle approval of layout framework.

Provided that if the additional details or particulars called for by the Competent Authority are not furnished within sixty days from the date of receipt of the communication by the applicant, the application shall be rejected.

(4)

In case of applications submitted to the Competent Authority specified in rule 2(2)(ii), the rectification in the layout directed by the Competent Authority shall be completed to the satisfaction of the Competent Authority specified in rule 2(2)(ii) including handing over of open space reservation land and roads, if any, to the concerned local authority.

(5)

If the layout is in accordance with these rules, upon intimation received from the Competent Authority specified in rule 2(2)(i) of the satisfactory rectification of the layout and the handing over of Open space reservation land and roads the Competent Authority specified in rule 2(2)(ii) shall grant in principle approval to the layout framework and forward a copy of the thus approved layout framework to the Competent Authority specified in rule 2(2)(i).

(6)

On receipt of the in-principle approval of the layout framework from the Competent Authority specified in rule 2(2)(ii), the Competent Authority specified in rule 2(2)(i) shall ensure that the individual plot applied for regularization tallies with the corresponding plot in the in-principle approved layout framework in respect of the plot dimensions and width of abutting road and issue demand notice for payment of Regularization Charges, Development Charges and Open Space Reservation charges.

(7)

If the payment is made as per the demand notice, the Competent Authority specified in rule 2(2)(i) shall issue regularisation order for the plot along with a copy of plan showing the individual plot so regularised.

(8)

(a)

In case of layout plans prepared suo-motu as given in rule 5(4), the Competent Authority specified in rule 2(2)(ii) shall examine the layout in accordance with the guidelines in rule 7 and propose necessary changes if any required and estimate the scrutiny fees, regularisation charges, development charges, OSR charges and the cost of improvement works for the entire layout. The charges and fees which shall be collected from each plot owner of the layout on pro-rata basis shall also be estimated.

(b)

The Competent Authority specified in rule 2(2)(ii) shall incorporate the changes or rectification works in the layout plan and grant in-principle approval for layout frame work. The in-principle approved layout frame work plan and the charges and fees to be collected from each plot owner on pro-rata basis shall be forwarded to the Competent Authority specified in rule 2(2)(i).

(c)

On receipt of the in principle approved layout framework and the details of charges to be collected, the Competent Authority specified in rule 2(2)(i) shall confirm the ownership right of the plot owner, collect the charges applicable for the plot and issue approved regularized plan for the plot. The Competent Authority specified in rule 2(2)(i) shall undertake the improvement works on behalf of the layout promoter or plot owners. The roads shall be taken over suo-motu for maintenance under the appropriate provisions of the local bodies Acts and rules made thereunder.

(9)

Regularisation of unapproved layout framework will not automatically regularise the individual plot in the layout. The individual plot owner/promoter (in the case of unsold plots) shall, after regularization of the layout framework, apply for regularisation of his plot/plots separately.

(10)

On receipt of the demand notice for payment of charges and fees, the applicant is liable to pay all the charges and fees to the Competent Authority as per the demand notice within thirty days from the date of communication of the said demand notice. If the payment is not made within the time stipulated above, it shall attract interest at the rate of six per cent per annum. If the said amount is not remitted within ninety days from the date of receipt of the said demand notice, the application shall be summarily rejected.

(11)

In case of applications which are found to be not in accordance with these rules or in compliance with the directions issued by the Competent Authority, orders shall be issued rejecting such applications.

(12)

The Competent Authority specified in rule 2(2)(i) shall forward the copy of the in-principle approved layout framework alongwith the gift deed for the roads and the Open space reservation to the concerned Tahsildar for carrying out mutation in the revenue records especially in respect of Open space reservation and roads.

15.

Consequences of non-regularisation.

- Where no regularization is ordered under these rules for an unapproved plot or layout; then-

(a)

no electricity, water supply, drainage and sewerage connections shall be extended to such unapproved plot or layout;

(b)

such unapproved plot or layout shall not be registered under the Registration Act, 1908 (Central Act 9 of 1908) by the Registration Department; and

(c)

no building approval shall be given by the authorities concerned for such unapproved plot or layout.

In order to give effect to the consequences indicated above, the Departments concerned shall make necessary amendments in their respective Acts.

16.

Amount levied towards development charges to be kept in separate account.

- The development charge collected by the respective local bodies shall be credited into a separate account and shall be used to fund amenities and infrastructure development programs within the local body jurisdiction including meeting of the State share under the centrally sponsored schemes.

17.

Appeal.

(1)

Any person aggrieved by an order passed by the Competent Authority in Chennai Metropolitan Planning Area may prefer an appeal to the Government and in other areas to the Director of Town and Country Planning within thirty days from the date of receipt of the order:

Provided that the Government or the Director of Town and Country Planning, as the case may be, may admit an appeal preferred after the expiration of thirty days, if they are satisfied that the appellant had sufficient cause for not preferring the appeal within the said period.

18.

Revision.

- Any person aggrieved by an order passed by the Director of Town and Country Planning in any area not covered under the Chennai Metropolitan Planning Area may prefer revision to the Government within thirty days from the date of receipt of the order:

Provided that the Government may admit a revision preferred after the expiration of thirty days, if they are satisfied that the appellant had sufficient cause for not preferring the revision within the said period.

19.

Review.

- Any person aggrieved by an order passed by the Government in an area covered under the Chennai Metropolitan Planning Area may prefer review to the Government within thirty days from the date of receipt of the order by explaining new grounds for reviewing the order:

Provided that the Government may admit a review preferred after the expiration of thirty days, if they are satisfied that the applicant had sufficient cause for not preferring the review within the said period.

20.

Disclaimer.

- Regularisation of plot under these rules shall not be deemed to be a regularisation of the building constructed in the plot and does not confer any right on the applicant or owner of the plot to obliterate the action taken against such buildings under sections 56 and 57 of the Act.

21.

Transitory provisions.

(1)

All appeals or applications which are pending before any Committee or the Government, as the case may be, and eligible for regularisation under these rules, then, the Committee or the Government, as the case may be, shall transfer those appeals or applications to the Competent Authority and the Competent Authority shall deal with such cases in accordance with these rules.

(2)

Any person whose application was rejected or refused under the relevant rules prevailing in the respective areas, immediately before the date of coming into force of these rules, shall make an application afresh to the Competent Authority by satisfying the provisions of these rules.

Dharmendra Pratap Yadav Secretary To Government.

Form I

Application for regularisation of plot and layout

[See rule 5 (1)]

From

To

The Competent authority,

Sir

I hereby apply for regularisation of plot / layout under the provisions of the Tamil Nadu Regularisation of Unapproved Plots and Layouts Rules 2017. The details of the plot / layout proposed for regularization are furnished in the following table:

Sl. No.

Subject.

Details.

(1)

Name of the applicant.

(2)

Name of the layout, if any.

(3)

Plot number(s).

(4)

Name of the Village and Panchayat.

(5)

Panchayat Union.

(6)

Name of the Corporation / Municipality/Town Panchayat.

(7)

Ward No. and Block No.

(8)

Taluk.

(9)

District.

(10)

Survey Numbers of the plot or sub-division or layout applied for regularization.

Plot Number (s)

Wet land

Dry land

SF.No. /Extent

SF.No. /Extent in

R.S.No. /in acre

R.S.No. /in acre

TS No. /Sq.m

TS No. /Sq.m

(a)

(b)

Total extent:

(11)

Total number of plots in the layout.

(12)

Total number of plots sold in the layout.

(13)

Total number of plots in the layout with building.

(14)

OSR area required in sq.m (10% of the total layout area).

(15)

Extent of OSR land provided in the layout in sq.m.

(16)

Whether the OSR land in the layout was handed over to the local body.

Yes / No, Extent..... sq.m.

(17)

Whether the roads in the layout handed over to the local body.

Yes / No, Extent..... sq.m.

(18)

Date of registration of plot(s).

Plot No (s) Date of Registration

(Strike out whichever is not applicable)

I also forward herewith the following particulars:-

(1)

Demand draft or Banker's cheque from any Nationalised / Scheduled Bank or payment through NEFT/RTGS, towards scrutiny fee at the rate of Rs.500/- (Rupees five hundred only) per plot and regularisation charges drawn in favour of the Competent Authority, payable at the local branch of the Bank.

(2)

A self declaration in a non judicial stamp paper of value not less than twenty rupees, that the plot or layout is not attracted under the provisions of the Repealed Tamil Nadu Urban Land (Ceiling and Regulation) Act, 1978 (Tamil Nadu Act 24 of 1978) and the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

).

(3)

An undertaking in a non-judicial stamp paper of value not less than twenty rupees agreeing to undertake the rectification works as directed by the Competent Authority and remit the development charges, regularisation charges and Open space reservation land charges as applicable and as assessed by the Competent Authority.

(strike out whichever is not applicable)

I,.....the plot holder / Layout promoter / registered Co-operative Society / Association being the owner / legal representative of every part of the land to which the accompanying application relates request to accord regularization of plot / layout.

Signature of the applicant.

Date :

Encl:

(1)

Self Assessment Working Sheet.

(2)

Declaration

(3)

Undertaking

Self Assessment Working Sheet Calculation of Regularisation Charge, Development Charge, OSR land Charge and Scrutiny Fees (Fill up the table applicable) For Individual Plot: (Tick those applicable)

(a)

Plot Area in sq.m

(b)

Regularisation charge (a) x Rs.100/ sq.m for Corporation Area / Rs.60/sq.m. for Municipal Area / Rs.30/sq.m for Town Panchayat and Village Panchayat Areas.

(c)

Development Charge (a) x Rs.600/sq.m for Corporation Area / Rs.350/sq.m in Special and Selection Grade Municipal Area, Rs.250/sq.m. in Grade-I and Grade-II Municipal Area, Rs.150/sq.m. for Town Panchayat and Rs. 100/sq.m. for Village Panchayat Areas

(d)

Guide Line Value(GLV) as on 01.08.2007 / 01.04.2012 / Value fixed by the Registration Department on the date of issue of in-principle approval of layout framework for issue of regularization order in Rs. /sq.m.

(e)

OSR land Charges(a) X 10/100 x (d)

(f)

Scrutiny Fee of Rs.500/plot

(g)

Total Charges (b) + (c) + (e) + (f)

For Layout

(a)

Total Plot Area in sq.m.

(b)

Regularisation Charge. (a) x Rs. 100/sq.m. for Corporation Area/ Rs.60/sq.m. for Municipal Area / Rs.30/sq.m. for Town Panchayat and Village Panchayat Areas.

(c)

Development Charge. (a) x Rs.600/sq.m. for Corporation Area/ Rs.350/sq.m. for Special and Selection Grade Municipal Area / Rs.250/sq.m. for Grade I and Grade II Municipal Area / Rs.150/sq.m. for Town Panchayat and Rs. 100/sq.m. for

Village Panchayat Areas.

(d)

OSR area required in sq.m. (10% of the total layout area).

(e)

OSR area provided in sq.m.

(f)

Shortage OSR area in sq.m.

(g)

Guide Line Value(GLV) as on 01.08.2007 / 01.04.2012 / Value fixed by the Registration Department on the date of issue of in-principle approval of layout framework for issue of regularization order in Rs. /sq.m.

(h)

OSR area Charge.

(f)

X (g)

(i)

Scrutiny Fee.

Number of plots x Rs.500

(j)

Total Charge (b) + (c) + (h) + (i)

Payment Detail.

(1)

Demand Draft No and Date (Drawn on Nationalised / Scheduled Bank

(2)

Bank / Branch

(3)

Charges if remitted through NEFT/RTGS Name of the Account Holder:

Account No:

Bank / Branch Amount:

Date

IFSC Code:

Form - II

Format of Declaration

See rule 5 (7) (c)

I S/o., D/o am the applicant for the plot(s) bearing no(s) in T.S.No/R.S.No/S.No Ward No Block No of Village Taluk District solemnly affirm that the plot / layout applied for regularization under these rules is not attracted under the provisions of the Repealed Tamil Nadu Urban Land (Ceiling and Regulation) Act, 1978 (Tamil Nadu Act 24 of 1978) and Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

).

I understand that if the above said land is declared otherwise, the plot/ layout if regularized shall be cancelled. Date Name and signature of the applicant.

Form - III

Format of undertaking in Rs. 20/- non-judicial stamp paper (For regularization of unapproved layout)

(See rule 5 (7) (c)

I S/o.,D/o am the applicant for the plot(s) bearing no(s) in T.S.No/R.S.No/S.No Ward No Block No of Village Taluk District.

Hereby agree to undertake the rectification works as directed by the Competent Authority and remit the development charges, regularisation charges, Open space reservation charges and Scrutiny Fees as applicable and as assessed by the Competent Authority

Date

Name and Signature of the applicant.

Dharmendra Pratap Yadav,

Secretary To Government.

Related AI tags, queries and research notes

Translation